

The Code of Criminal Procedure (Bihar Amendment) Act, 1983

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State of Bihar - Act

The Code of Criminal Procedure (Bihar Amendment) Act, 1983

BIHAR

India

The Code of Criminal Procedure (Bihar Amendment) Act, 1983

Act 16 of 1984

Published on 24 August 1984

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The Code of Criminal Procedure (Bihar Amendment) Act, 1983

(Bihar Act

16 of 1984

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Received the assent of the President on 24.8.1984, published in Bihar Gazette Extraordinary No. 466, dated 24 August, 1984.

An Act to amend the Code of Criminal Procedure, 1973 (Act II of 1974) in its application to the State of Bihar.

Be it enacted by the Legislature of the State of Bihar in the Thirty-fourth Year of the Republic of India as follows:

1.

Short title, extent and commencement.

(1)

This Act may be called the Code of Criminal Procedure (Bihar Amendment) Act, 1983.

(2)

It extends to the whole of the State of Bihar.

(3)

It shall come into force at once.

2.

Amendment of Section 24 of the Code of Criminal Procedure, 1973 (Act II of 1974) in its application to the State of Bihar.

- For sub-section (6) of Section 24 of the Code of Criminal Procedure, 1973 (Act II of 1974) the following sub-section shall be substituted and shall always be deemed to have been substituted namely:-

"(6) Notwithstanding anything contained in sub-section (5) wherein a State there exists a regular cadre of Prosecuting Officers, the State Government may also appoint a Public Prosecutor or an Additional Public Prosecutor from among the persons constituting such cadre."

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